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5 BILL NO. 1733 By: Thompson and Hamilton of
the Senate

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7	Lawson of the House
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An Act relating to schools; amending Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2025, Section 6-401), which relates to student communications; requiring immediate notification to law enforcement of certain violations; updating statutory language; requiring public and private school employees to report certain disclosure, allegation, or information to law enforcement within certain time period; clarifying term; requiring certain officer to submit certain report under certain circumstances; requiring certain report to law enforcement prior to certain formal investigation or questioning; prohibiting school personnel from taking certain actions until law enforcement has been notified; providing exception; requiring certain information to be kept confidential or redacted; requiring public and private school employees to annually sign certain attestation; providing certain construction;

1 providing for codification; providing an effective
2 date; and declaring an emergency.

3
4 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

5 SECTION 1. AMENDATORY Section 1, Chapter 297, O.S.L.
6 2024 (70 O.S. Supp. 2025, Section 6-401), is amended to read as
7 follows:

8 Section 6-401. A. As used in this section:

9 1. "Electronic or digital communication" includes, but is not
10 limited to, emails, text messages, instant messages, direct
11 messages, social media messages, messages sent through software
12 applications, and any other electronic digital means of
13 communication; and

14 2. "School personnel" means teachers, coaches, administrators,
15 school bus drivers, or any other persons employed full-time or part-
16 time by a public school or charter school.

17 B. School personnel engaging in electronic or digital
18 communication with an individual student shall include the student's
19 parent or legal guardian in any electronic or digital communication,
20 unless such communication is on a school-approved platform and
21 related to school and academic communications.

22 C. Exceptions to the requirement in subsection B of this
23 section may be made in case of an emergency, subject to subsequent
24 notification to the parent or legal guardian. School personnel

1 shall make reasonable efforts to use school-approved platforms,
2 systems, or applications that allow automatic inclusion of parents
3 or legal guardians in communications with students.

4 D. Schools shall provide training, developed by the State
5 Department of Education, for school personnel on the student
6 communication requirements of this section.

7 E. Any school personnel who is reported to be in violation of
8 subsection B of this section shall be put on administrative leave
9 while the school district investigates the incident and notifies the
10 board of education. If the investigation finds that no misconduct
11 occurred, the school personnel shall be reinstated and the incident
12 shall be noted in the school personnel's employee file. If the
13 investigation finds misconduct occurred, the school personnel shall
14 be disciplined according to the school district board of education's
15 policy, up to and including termination of employment, and the
16 incident shall be reported to law enforcement pursuant to Section
17 1210.163 of ~~Title 70 of the Oklahoma Statutes~~ this title.

18 F. A school district or charter school shall immediately notify
19 law enforcement of any violation of subsection B of this section
20 involving sexual activity, sexual contact, or any other
21 inappropriate or unlawful behavior pursuant to Section 1210.163 of
22 this title.

1 SECTION 2. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 1210.164 of Title 70, unless
3 there is created a duplication in numbering, reads as follows:

4 A. 1. In addition to any report required pursuant to Section
5 1210.163 of Title 70 of the Oklahoma Statutes, every public and
6 private school employee having reason to believe, or receiving an
7 allegation or disclosure, that a student is the victim of sexual
8 abuse, sexual assault, or sexual misconduct, shall report the
9 disclosure, allegation, or information within twenty-four (24) hours
10 to local law enforcement.

11 2. For the purposes of this section, local law enforcement
12 means a law enforcement agency that is independent of the public
13 school district or private school, or a campus police department
14 thereof, and shall not include a school resource officer employed by
15 the public school district or private school unless directed by the
16 independent law enforcement agency. When a school resource officer
17 is utilized pursuant to this subsection, the officer shall submit a
18 written report describing the circumstances and any actions taken to
19 the independent law enforcement agency.

20 B. 1. Any disclosure or allegation made pursuant to this
21 section shall be reported to law enforcement prior to any formal
22 investigation by the public school district or its board of
23 education or the private school or its governing body or questioning
24 of the subject of the disclosure or allegation.

1 2. No school investigator, administrator, or official shall
2 conduct formal interviews of the subject of the disclosure or
3 allegation or engage in disciplinary proceedings until law
4 enforcement has been notified and has had the opportunity to
5 interview the involved parties, unless law enforcement determines
6 that an immediate school response is necessary to protect student
7 safety.

8 C. In reports required by subsection A of this section, local
9 law enforcement shall keep confidential and redact any information
10 identifying the reporting school employee unless otherwise ordered
11 by the court. A school employee with knowledge of a report required
12 by subsection A of this section shall not disclose information
13 identifying the reporting school employee unless otherwise ordered
14 by the court or as part of an investigation by local law enforcement
15 or the State Department of Education.

16 D. In addition to the attestation required by Section 1210.163
17 of Title 70 of the Oklahoma Statutes, every public and private
18 school employee shall annually sign an attestation acknowledging his
19 or her responsibility to report suspected child abuse or neglect
20 pursuant to this section. Failure to sign an attestation shall not
21 relieve school personnel from the obligations created in this
22 section or Section 1210.163 of Title 70 of the Oklahoma Statutes,
23 nor shall such failure constitute a defense to criminal liability
24 arising under Section 1-2-101 of Title 10A of the Oklahoma Statutes.

1 SECTION 3. This act shall become effective July 1, 2026.

2 SECTION 4. It being immediately necessary for the preservation
3 of the public peace, health, or safety, an emergency is hereby
4 declared to exist, by reason whereof this act shall take effect and
5 be in full force from and after its passage and approval.

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7 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
8 OVERSIGHT, dated 04/14/2026 - DO PASS.
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